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UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF GEORGIA
ATLANTA DIVISION

MICHAEL E. SULLIVAN, JR.,
Plaintiff,
v.
W. MICHAEL MALOOF, JR.,
d/b/a THE MALOOF LAW FIRM,
Defendant.

Civil Action No.:
1:25-cv-02006-JPB

PLAINTIFF'S OBJECTION TO CONSIDERATION OF DEFENDANT'S MOTION TO STRIKE [DOC. 5] DUE TO LACK OF SERVICE

COMES NOW Plaintiff, Michael E. Sullivan, Jr., proceeding *pro se*, files this objection regarding Defendant's Motion to Strike [Doc. 5]. This filing is not a response to the merits of Defendant's motion, as no response is yet due. Rather, it is filed to formally notify the Court that Defendant has failed to properly serve the motion upon Plaintiff, rendering any consideration of it premature and tolling any response deadline. In support, Plaintiff states:

1. On June 17, 2025, Defendant filed a Motion to Strike Settlement Communications ("Motion to Strike") [Doc. 5].

2. The Certificate of Service for the Motion to Strike states it was served electronically "to all attorneys of record" via the CM/ECF system. [Doc. 5, p. 15].

3. Plaintiff is proceeding *pro se* and is not an "attorney of record" or a registered CM/ECF user.

4. Service on a pro se litigant in this District is governed by Federal Rule of Civil Procedure 5, Local Rule 5.1(A)(3), and this Court's Standing Order [Doc. 3]. These rules mandate that a non-registered party like Plaintiff be served directly with a copy of any filed document via mail and, when an email address is provided, via email as well.

5. Defendant failed to serve the Motion to Strike on Plaintiff by U.S. Mail, email, or any other method permitted for service on a pro se party.

6. Pursuant to Local Rule 7.1(B), the deadline to respond to a motion runs for fourteen (14) days "after service of the motion." Because legally effective service on Plaintiff has not occurred, the 14-day response period has not commenced.

7. Plaintiff has already filed a "Motion to Compel Service" [Doc. 6], which details this service failure and requests that the Court order Defendant to properly serve all outstanding documents.

8. Plaintiff files this objection to preserve his rights and to prevent the prejudice that would occur if the Court considered a motion that has not been properly served and for which the response time has not yet begun. To respond to the substance of the Motion to Strike at this time would be premature and could be improperly construed as a waiver of Plaintiff's fundamental right to proper service.

RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that the Court:

(1) Acknowledge that Defendant's Motion to Strike [Doc. 5] has not been properly served on Plaintiff;

(2) Defer any consideration of the merits of Defendant's Motion to Strike until the Court has ruled on Plaintiff's pending Motion to Compel Service [Doc. 6]; and

(3) Order that Plaintiff's deadline to respond substantively to the Motion to Strike shall only begin to run from the date on which service is properly effectuated by Defendant.

(4) Grant such other and further relief as this Court deems just and proper.

Respectfully submitted this 1st day of July, 2025.

Michael E. Sullivan, Jr.,
Plaintiff *pro se*
3324 Peachtree Road NE, Unit 1405
Atlanta, GA 30326
(678) 372-3000
msullivanjr@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing **PLAINTIFF'S OBJECTION TO CONSIDERATION OF DEFENDANT'S MOTION TO STRIKE [DOC. 5] DUE TO LACK OF SERVICE** was served upon Defendant's counsel by depositing the same in the United States Mail, first class postage prepaid, addressed as follows:

Bryan J. Henderson, Esq.
William S. Cleveland, Esq.
GUILMETTE PULVER LLC
1355 Peachtree St. NE, Suite 1125
Atlanta, Georgia 30309-4902

This, the 1st day of July, 2025.

Michael E. Sullivan, Jr.,
Plaintiff *pro se*
3324 Peachtree Road NE, Unit 1405
Atlanta, GA 30326
(678) 372-3000
msullivanjr@gmail.com

FONT AND POINT CERTIFICATION

The undersigned Plaintiff hereby certifies that the within and foregoing **PLAINTIFF'S OBJECTION TO CONSIDERATION OF DEFENDANT'S MOTION TO STRIKE [DOC. 5] DUE TO LACK OF SERVICE** was prepared using Century Schoolbook, 13-point font in accordance with LR 5.1(C).